UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF PENNSYLVANIA

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Logan Reid Murphy,
Plaintiff,
v.
LexisNexis Risk Solutions, Inc.,
Defendant.

Logan Reid Murphy,
Plaintiff,
v.
LexisNexis Risk Solutions, Inc.,
Defendant.

Civil Action No. _____

Civil Action No.

COMPLAINT AND JURY DEMAND

This is an action for damages brought by an individual consumer against Defendant (named below) for violations of the Fair Credit Reporting Act, 15 U.S.C. § 1681 et seq. (the "FCRA").

INTRODUCTION

1. Plaintiff Logan Reid Murphy ("Mr. Murphy" or "Plaintiff") is a twenty-three-year-old college student with an Arizona driver's license, a clean driving record, and no connection to the State of Indiana. LexisNexis Risk Solutions, Inc. ("LexisNexis" or "Defendant") told his potential insurers otherwise.

2. LexisNexis merged Mr. Murphy's consumer file with that of Logan Joseph Murphy of Chesterton, Indiana — a different man who shares Mr. Murphy's first name, last name and date of birth, and nothing else. The two have different middle names, different Social Security numbers, and driver's licenses issued by different states.

3. Because of that, LexisNexis reported that Mr. Murphy had a suspended Indiana driver's license, six license suspensions, five traffic convictions — including a conviction for operating a vehicle while intoxicated — ten Indiana automobile insurance policies, six insurance claims with aggregate payouts of approximately $78,000 in paid losses, and other individually adverse accounts and late payments LexisNexis sold that file to State Farm and Progressive multiple times between April and July 2026.

4. The consequences were immediate. On his family's insurance agent's advice, Mr. Murphy was removed from his parents' State Farm policy so that the policy would not be cancelled. He was excluded as a driver from his wife's policy. He was quoted more than $2,400 for six months of liability-only coverage on a 2003 Ford Explorer. And the Arizona Motor Vehicle Division notified him that his registration would be suspended for lack of insurance and that he should not drive his vehicle.

Introduction

1. Plaintiff Logan Reid Murphy ("Mr. Murphy" or "Plaintiff") is a twenty-three-year-old college student with an Arizona driver's license, a clean driving record, and no connection to the State of Indiana. LexisNexis Risk Solutions, Inc. ("LexisNexis" or "Defendant") told his potential insurers otherwise.

2. LexisNexis merged Mr. Murphy's consumer file with that of Logan Joseph Murphy of Chesterton, Indiana — a different man who shares Mr. Murphy's first name, last name and date of birth, and nothing else. The two have different middle names, different Social Security numbers, and driver's licenses issued by different states.

3. Because of that, LexisNexis reported that Mr. Murphy had a suspended Indiana driver's license, six license suspensions, five traffic convictions — including a conviction for operating a vehicle while intoxicated — ten Indiana automobile insurance policies, six insurance

7. Plaintiff brings this action under Sections 1681e(b) and 1681i of the FCRA for LexisNexis' willful and negligent failure to follow reasonable procedures to assure the maximum possible accuracy of his consumer reports and its failure to conduct a reasonable reinvestigation and correct his file, and seeks actual, statutory and punitive damages, together with attorneys' fees and costs.

JURISDICTION AND VENUE

8. Jurisdiction of this Court arises under 15 U.S.C. § 1681p, and 28 U.S.C. §1331, 1337.

9. Venue lies properly in this district pursuant to 28 U.S.C. §1391(b).

PARTIES

10. Mr. Murphy is an adult individual who resides in Rexburg, ID, where he attends college. Mr. Murphy holds an Arizona driver's license, and his vehicle was registered in Arizona.

11. Defendant LexisNexis is a business entity that is registered to do business in the Commonwealth of Pennsylvania and regularly conducts business in the Eastern District of Pennsylvania, with a principal place of business located at 1000 Alderman Drive, Alpharetta, GA 30005. LexisNexis is known as a consumer reporting agency ("CRA") under the FCRA.

Facts

Consumer Reports and the Purpose of the FCRA

12. Consumer reports provide information bearing on, among other things, a consumer's creditworthiness, character, general reputation, personal characteristics and mode of living.

Mr. Murphy did everything the FCRA asks of a consumer. He disputed the inaccurate information, item by item, over approximately nine hours of telephone calls. LexisNexis responded by telling him that records had been "removed" — and then generating a new copy of his file that still contained them. When he called to ask why, LexisNexis' representatives told him they could not find his file. Two weeks later, LexisNexis — which had already authenticated Mr. Murphy at least three different times — wrote that it was "unable to authenticate [his] identity" and would not process his request.

6. None of this should have happened. LexisNexis had Mr. Murphy's correct Social Security number, Arizona driver's license number and addresses. Every one of the other man's records carried an Indiana driver's license number, Indiana addresses, the middle name "Joseph," and a different Social Security number. A cursory comparison of identifiers would have kept the two files apart, and a reasonable reinvestigation would have separated them the moment Mr. Murphy disputed.

Parties

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FACTS

LexisNexis and the Insurance Reporting Industry

Consumer Reports and the Purpose of the FCRA

23. LexisNexis regularly receives information from various sources around the country including insurance carriers, state motor vehicle departments, courts, other CRAs, lenders, debt collectors, public records vendors, and others.

12. Consumer reports provide information bearing on, among other things, a consumer's creditworthiness, character, general reputation, personal characteristics and mode of living.

13. Consumer reports are meant to enable insurers, creditors and other providers of consumer services to make informed risk decisions about new applicants and existing customers. These reports are used to make decisions having to do with insurance, housing, employment, credit and more.

24. The sources are known as "furnishers" within the consumer reporting industry and under the FCRA.

25. LexisNexis collects information from thousands of furnishers.

26. The process by which LexisNexis receives, sorts, and stores information is largely electronic.

14. Early on Congress understood the dire consequences of inaccurate consumer reporting and enacted the FCRA to "insure that consumer reporting agencies exercise their grave responsibilities with fairness". See 15 U.S.C. § 1681(a).

27. LexisNexis maintains consumer files on hundreds of millions of consumers.

15. Thus, in order to further its objectives, embedded within the FCRA is the requirement that CRAs conduct a reasonable reinvestigation to determine whether information disputed by consumers is inaccurate and record the current status of the disputed information, or delete the disputed information, before the end of the 30 day period beginning on the date on which the CRA receives the notice of dispute from a consumer.

28. Among the consumer reports LexisNexis sells to automobile insurers are: (a) the Comprehensive Loss Underwriting Exchange, or "C.L.U.E." report, which lists the automobile insurance claims LexisNexis associates with a consumer; (b) the "Current Carrier" report, which lists the current and prior automobile insurance policies LexisNexis associates with a consumer, including coverage, cancellations and lapses; and (c) driving records, including license status, suspensions and traffic convictions.

LexisNexis and the Insurance Reporting Industry

16. LexisNexis regularly receives information from various sources around the country including insurance carriers, state motor vehicle departments, courts, other CRAs, lenders, debt collectors, public records vendors, and others.

29. LexisNexis also furnishes automobile insurers with consumer credit information that it obtains from other CRAs, including Equifax Information Services, LLC ("Equifax"), Trans Union, LLC ("Trans Union") and Experian Information Solutions, Inc. ("Experian"), for use in insurance underwriting.

17. Among the consumer reports LexisNexis sells to automobile insurers are: (a) the Comprehensive Loss Underwriting Exchange, or "C.L.U.E." report, which lists the automobile insurance claims LexisNexis associates with a consumer; (b) the "Current Carrier" report, which lists the current and prior automobile insurance policies LexisNexis associates with a consumer, including coverage, cancellations and lapses; and (c) driving records, including license status, suspensions and traffic convictions.

30. Automobile insurers rely on LexisNexis' reports to decide whether to issue or renew a policy, whether to include or exclude a driver, and how much to charge. Adverse information such as at-fault accidents, paid claims, license suspensions and convictions for driving

Mixed File Problems of the Consumer Reporting Industry

38. Defendant is well aware that different consumers can have similar names.

37. Defendant also knows that different consumers can have similar Social Security numbers, birthdays and other personal identifying information.

38. Defendant matches insurance policy, claim, driving, public record and credit information to a consumer file by comparing the information about the consumer associated with the record to the information it maintains about the consumer in the consumer file.

39. Sometimes Defendant's matching algorithms associate information belonging to one consumer to the consumer file of another consumer; resulting in what is commonly known in the industry as a mixed or merged file.

40. A mixed or merged file is the result of Defendant inaccurately mixing personal identifying information, public record information, insurance information, credit information and/or an entire consumer file belonging to one consumer into the file of another consumer. See F.T.C. v. TRW, Inc., 784 F. Supp. 361, 362 (N.D. Tex. 1991) (The Federal Trade Commission defined a mixed credit file as a file that "refers to a Consumer Report in which some or all of the information pertains to Persons other than the Person who is the subject of that Consumer Report.")

41. Mixed files are not a new phenomenon.

42. LexisNexis has a long-standing and specific knowledge of the mixed file problem.

43. There are many different possible causes for a mixed file but all of them relate in one way or another to the algorithms (the database rules) used by the Defendant to match personal identifying information and insurance, driving, public record and credit information to a particular consumer's file.

44. These rules also determine which files are selected by the algorithm and are merged to create a complete consumer report.

middle name and a different Social Security number than Mr. Murphy. His automobile insurance

Case Background

Two Different Consumers

policies are Indiana policies co-insured with a woman named Joyce L. Murphy, whom Mr. Murphy

26. Mr. Murphy is twenty-three years old. He grew up in Peoria, Arizona, where his does not know.

parents still live and where he was a listed driver on his parents' State Farm automobile policies. He

59. Mr. Murphy and the Other Consumer share a first name, a last name, and a date of holds an Arizona driver's license. He attends college in Rexburg, Idaho, where he lives with his wife,

birth. They share nothing else as far as Mr. Murphy is aware.

whom he married in April 2026. He is also employed.

27. Mr. Murphy has never lived in Indiana, has never held an Indiana driver's license, has

LexisNexis Merged the Two Consumers' Files

never been a party to an Indiana automobile insurance policy or claim, has never had his driver's license

60. At all relevant times, LexisNexis' consumer file for Mr. Murphy contained, and suspended, and has never been arrested for, charged with, or convicted of driving while intoxicated.

LexisNexis reported as Mr. Murphy's, the following information belonging to the Other Consumer

28. Logan Joseph Murphy (the "Other Consumer") is a different person who lives in

(collectively, the "Inaccurate Information"):

Chesterton, Indiana. He holds an Indiana driver's license, which is suspended. He has a different

a. the name variations "Logan J Murphy" and "Logan Joseph Murphy";

middle name and a different Social Security number than Mr. Murphy.

LexisNexis Merged the Two Consumers' Files

b. addresses in Chesterton, Portage and Michigan City, Indiana;

29. At all relevant times, LexisNexis' consumer file for Mr. Murphy contained, and

c. the Indiana Bureau of Motor Vehicles as a "source" of Mr. Murphy's

LexisNexis reported as Mr. Murphy's, the following information belonging to the Other Consumer identifying information, even though Mr. Murphy has never had any

(collectively, the "Inaccurate Information"):

dealings with the Indiana Bureau of Motor Vehicles;

(a) the name variations "Logan J Murphy" and "Logan Joseph Murphy";

d. an Indiana driver's license record for "Logan Joseph Murphy," including

(b) addresses in Chesterton, Portage and Michigan City, Indiana;

his physical description and Indiana address, with a license status of

(c) the Indiana Bureau of Motor Vehicles as a "source" of Mr. Murphy's identifying

"SUSPENDED";

information, even though Mr. Murphy has never had any dealings with the Indiana

e. six driver's license suspensions between April 2025 and June 2026, for

Bureau of Motor Vehicles;

(d) an Indiana driver's license record for "Logan Joseph Murphy," including his physical chemical test failure, operating a vehicle per se, failure to appear for a driver

description and Indiana address, with a license status of "SUSPENDED";

safety program, failure to file proof of insurance, failure to file an SR-22,

(e) six driver's license suspensions between April 2025 and June 2026, for chemical test and pending chemical test results;

failure, operating a vehicle per se, failure to appear for a driver safety program, failure

f. traffic convictions from Indiana courts, including speeding, following too

to file proof of insurance, failure to file an SR-22, and pending chemical test results;

closely, failure to provide proof of insurance, and a March 24, 2025,

(f) traffic convictions from Indiana courts including speeding, following too closely, conviction in Porter Superior Court for operating a vehicle per se with a failure to provide proof of insurance, and a March 24, 2025, conviction in Porter blood alcohol concentration of .08 or more, together with fourteen "current Superior Court for operating a vehicle per se with a blood alcohol concentration points," a specialized driving privilege, and an SR-22 filing;
of .08 or more;

g. ten Indiana automobile insurance policies issued by State Farm and
(g) ten Indiana automobile insurance policies issued by State Farm and Progressive to
"Logan J Murphy," co-insured with Joyce L. Murphy, covering Indiana vehicles, Progressive, to "Logan J. Murphy," co-insured with Joyce L. Murphy,
several of which reflect mid-term cancellations; covering Indiana vehicles, several of which reflect mid-term cancellations;

(h) hsix automobile insurance claims, with loss dates of January 3, 2023, June 1, six automobile insurance claims, with loss dates of January 3, 2023, June 1,
January 24, 2025, August 29, 2025, June 17, 2026, and July 17, 2026, with 2024, January 24, 2025, August 29, 2025, June 17, 2026, and July 17, 2026,
approximately $79,000 in paid collision, property damage and medical payments; with approximately $79,000 in paid collision, property damage and medical
(i) credit report information obtained from Equifax and Experian for "Logan J Murphy" payments;
of Chesterton and Portage, Indiana, including, on the Experian report, two Capital
i. credit report information obtained from Equifax and Experian for "Logan J
One collection accounts, two LVNV Funding accounts reported as bad debts, late Murphy" of Chesterton and Portage, Indiana, including, on the Experian
payments, and the Other Consumer's employer; and report, two Capital One collection accounts, two LVNV Funding accounts
(j) approximately sixty inquiries by a debt collector, Midland Credit Management, and reported as bad debts, late payments, and the Other Consumer's employer;
numerous automobile finance credit inquiries, all of which relate to the Other and
Consumer's debts and credit applications.

30. None of the Inaccurate Information belongs to Mr. Murphy.

i. approximately sixty inquiries by a debt collector, Midland Credit
31. Every item of the Inaccurate Information carried identifiers that plainly did not match Management, and numerous automobile finance credit inquiries, all of
Mr. Murphy: an Indiana driver's license number, Indiana addresses, the middle name "Joseph," a which relate to the Other Consumer's debts and credit applications.
different Social Security number, and a co-insured whom Mr. Murphy has never met.

61. None of the Inaccurate Information belongs to Mr. Murphy.

32. LexisNexis had Mr. Murphy's correct Social Security number, Arizona driver's license number, and Arizona and Idaho addresses in its file. It reported the Inaccurate Information anyway.

62. Every item of the Inaccurate Information carried identifiers that plainly did not match Mr. Murphy: an Indiana driver's license number, Indiana addresses, the middle name "Joseph," a different Social Security number, and a co-insured whom Mr. Murphy has never met.

The Mixed File Costs Mr. Murphy His Insurance

33. Mr. Murphy married in April 2026 and, in June 2026, began shopping for his own automobile insurance.

63. LexisNexis had Mr. Murphy's correct Social Security number, Arizona driver's license number, and Arizona and Idaho addresses in its file. It reported the Inaccurate Information anyway.

State Farm policy before the Inaccurate Information caused the policy to be cancelled. Mr. Murphy's parents did so, and Mr. Murphy's coverage under his parents' policy ended on or about July 21, 2026.

The Mixed File Costs Mr. Murphy His Insurance

64. Mr. Murphy married in April 2026 and, in June 2026, began shopping for his own automobile insurance.

Mr. Murphy's Disputes

65. Every insurer from which Mr. Murphy sought a quote told him that his record reflected multiple accidents, violations and insurance claims, which he knew were not his.

66. Mr. Murphy contacted his parents' State Farm agent to find out why. The agent informed Mr. Murphy that his information was being blended with that of the Other Consumer and sent Mr. Murphy a news article — including a booking photograph — reporting the Other Consumer's June 17, 2026, arrest for driving under the influence.

67. The agent advised Mr. Murphy's parents to remove Mr. Murphy from their Arizona State Farm policy before the Inaccurate Information caused the policy to be cancelled. Mr. Murphy's parents did so, and Mr. Murphy's coverage under his parents' policy ended on or about July 21, 2026.

68. When Mr. Murphy's wife obtained a Progressive policy in Idaho on or about July 8, 2026, Mr. Murphy was listed on the policy as an "Excluded Driver."

69. Mr. Murphy learned that the Inaccurate Information was coming from LexisNexis. Indiana insurance policies, his six insurance claims, his Indiana addresses, and the Experian and Equifax credit information LexisNexis had furnished as Mr. Murphy's.

Mr. Murphy's Disputes

70. On June 30, 2026, Mr. Murphy called LexisNexis to dispute the Inaccurate Information and to request a copy of his file. LexisNexis' representative initially could not verify

82. LexisNexis "verified" the Other Consumer's State Farm and Progressive records as Mr. Murphy's even though those records bore an Indiana driver's license number, Indiana addresses and a co-insured that did not match the identifying information LexisNexis had for Mr. Murphy, and even though Mr. Murphy had told LexisNexis exactly whose records they were.

83. On August 19, 2026, Mr. Murphy immediately called LexisNexis. While Mr. Murphy was looking at the file he had accessed using the link and PIN LexisNexis had mailed him, LexisNexis' representatives told him that they could not find his file. After approximately 104 minutes on the telephone, and after the call was disconnected, Mr. Murphy then called back and was told that a supervisor would call him back the following day.

84. A LexisNexis supervisor called Mr. Murphy on August 20, 2026. She could not tell him what was going on, and told him that she would manually write down, again, each of the records Mr. Murphy had disputed that remained in his file despite LexisNexis' statement that they had been removed.

85. On August 25, 2026, a LexisNexis representative told Mr. Murphy that his file was "in the backend being recreated." The representative could not tell Mr. Murphy when the problem would be resolved.

86. By letter dated August 26, 2026, LexisNexis — once again — informed Mr. Murphy that it was "unable to authenticate your identity and could not process your request." This was despite previously having accepted his identity documents to process a prior dispute.

87. On September 1, 2026, Mr. Murphy filed a complaint with the Consumer Financial Protection Bureau.

88. On September 11, 2026, in response to Mr. Murphy's CFPB complaint, LexisNexis' "Escalations" unit emailed Mr. Murphy that it was, again, "unable to authenticate your identity and therefore cannot process your request."

105. Plaintiff's consumer reports and file have been obtained from the Defendant and have been reviewed by prospective and existing insurers, and the Inaccurate Information has been a substantial factor in precluding Plaintiff from receiving insurance coverage and insurance opportunities at fair rates, known and unknown.

106. As a result of Defendant's violations of the FCRA, Plaintiff has suffered a range of actual damages, including, without limitation, loss of insurance coverage and insurance opportunities; increased cost of insurance; loss of time and money; interference with his ability to drive to school and to work and with his daily activities; reputational damage; loss of sleep; and emotional distress, including mental anguish, anxiety, fear, worry, stress, anger, frustration, humiliation, and embarrassment, including that attendant to his disputes and to being repeatedly disbelieved, disconnected, and told that he could not be identified by the company that was selling reports about him.

COUNT One – Violations of the FCRA

Plaintiff v. LexisNexis

107. Plaintiff incorporates the foregoing paragraphs as though the same were set forth at length herein.

108. At all times pertinent hereto, LexisNexis was a "person" and a "consumer reporting agency" as those terms are defined by 15 U.S.C. § 1681a(b) and (f).

109. At all times pertinent hereto, Plaintiff was a "consumer" as that term is defined by 15 U.S.C. § 1681a(c).

110. At all times pertinent hereto, the above-mentioned consumer reports, including the C.L.U.E., Current Carrier, driving record and credit reports LexisNexis furnished to State Farm and Progressive, were "consumer reports" as that term is defined by 15 U.S.C. § 1681a(d).

111. LexisNexis has violated numerous provisions of the FCRA for its improper actions, including but not limited to Sections 1681e(b) and 1681i of the FCRA. LexisNexis willfully and negligently violated the FCRA and is liable for damages to Plaintiff pursuant to Section 1681n and 1681o of the FCRA.

112. The conduct of LexisNexis was a direct and proximate cause, as well as a substantial factor, in bringing about the actual damages and harm to Plaintiff that are outlined more fully above and, as a result, Defendant is liable to Plaintiff for the full amount of statutory, actual and punitive damages, along with the attorneys' fees and the costs of litigation, as well as such further relief, as may be permitted by law.

JURY TRIAL DEMAND

113. Plaintiff demands trial by jury on all issues so triable.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff seeks judgment in Plaintiff's favor and damages against the Defendant, based on the following requested relief:

(a) Actual damages;

(b) Statutory damages;

(c) Punitive damages;

(d) Costs and reasonable attorneys' fees; and

(e) Such other relief as may be necessary, just and proper.

54. The conduct of LexisNexis was a direct and proximate cause, as well as a substantial factor, in bringing about the actual damages and harm to Plaintiff that are outlined more fully above and, as a result, Defendant is liable to Plaintiff for the full amount of statutory, actual and punitive damages, along with the attorneys' fees and the costs of litigation, as well as such further relief, as may be permitted by law.

JURY TRIAL DEMAND

59. Plaintiff demands trial by jury on all issues so triable.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff seeks judgment in Plaintiff's favor and damages against the Defendant, based on the following requested relief:

a. Actual damages;

b. Statutory damages;

c. Punitive damages;

d. Costs and reasonable attorneys' fees; and

e. Such other relief as may be necessary, just and proper.

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